



Republic of the Philippines
Province of Surigao del Sur
MUNICIPALITY OF CARMEN

POSTED:
DATE: 06-01-2026
BY: 
MA. JULINA B. JUTILO
SB SECRETARY

TANGGAPAN NG SANGGUNIANG BAYAN

EXCERPTS FROM THE MINUTES OF THE 43RD REGULAR SESSION OF THE 14TH SANGGUNIANG BAYAN OF CARMEN, SURIGAO DEL SUR HELD AT THE SB SESSION HALL, LEGISLATIVE BUILDING ON MAY 26, 2026

PRESENT:

REGULAR SANGGUNIANG BAYAN MEMBERS:

Hon. Carlos S. Estrada		SB Member/ Temporary Presiding Officer
Hon. Harvey S. Manawatao		SB Member
Hon. Tanie A. Quillano		SB Member
Hon. Nilo S. Bigno		SB Member
Hon. Daniel A. Tejol		SB Member
Hon. Elvie U. Ohao		SB Member
Hon. Rencio P. Valeroso		SB Member

EX-OFFICIO MEMBERS:

Hon. Blandena V. Sugian		ABC President
Hon. Jeff Anthony D. Beloria		SK Federation President

ON LEAVE:

Hon. Jane V. Plaza		Municipal Vice- Mayor
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REGULAR SANGGUNIANG BAYAN MEMBER:

Hon. Michael C. Escuyos		SB Member
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ORDINANCE NO. 58
Series of 2026

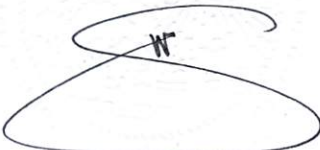
“AN ORDINANCE PROHIBITING THE ACT OF BEING HALF-NAKED OR TOPLESS IN PUBLIC PLACES WITHIN THE MUNICIPALITY OF CARMEN, PROVINCE OF SURIGAO DEL SUR PROVIDING PENALTIES FOR VIOLATION THEREOF AND FOR OTHER PURPOSES”

Author: Hon. Harvey S. Manawatao

Enacted: All Members Present

EXPLANATORY NOTE

WHEREAS, Section 16 of Republic Act No. 7160 otherwise known as the Local Government Code of 1991 mandates the Local Government Units to promote the General Welfare, preserve the comfort and convenience of inhabitants and maintain peace and order within their respective territories;



WHEREAS, the Municipality of Carmen, Surigao del Sur is committed to upholding public decency, morality and proper social conduct within its jurisdiction;

WHEREAS, the act of being half-naked or topless in public places has been observed in some areas of the Municipality, which causes discomfort, offenses or disturbance to the general public especially to children and women;

WHEREAS, the preservation of public decency and morality is a fundamental responsibility of the Local Government Units as enshrined in the New Civil Code of the Philippines which recognizes the State's duty to safeguard social norms and values;

WHEREAS, the presence of half-naked or topless individuals in public places may disrupt order, create unnecessary public attention and potentially lead to situations that compromise the safety and peace of the community;

WHEREAS, maintaining a standard of proper attire in public spaces contributes to the promotion of a positive image of the Municipality, enhances its attractiveness as a place for tourism and investment and fosters a sense of dignity and respect among its inhabitants;

WHEREAS, the enactment of this ordinance is not intended to restrict personal freedom or individual expression but rather to balance such rights with the collective right of the public to enjoy public spaces free from offenses, discomfort or disturbance;

WHEREAS, the Sangguniang Bayan deems it necessary to enact this ordinance to regulate public behavior and ensure that public spaces remain respectful and appropriate for all members of the community;

WHEREAS, the Sangguniang Bayan recognizes that upholding public decency is essential for the harmonious coexistence of diverse groups within the Municipality and that such regulations are consistent with prevailing national laws and jurisprudence on public order and moral;

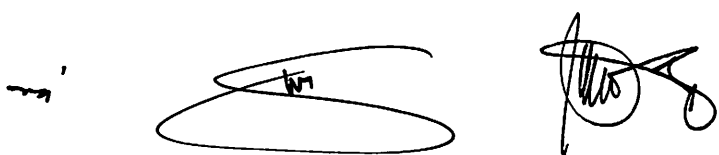
BE IT ORDAINED, by the Sangguniang Bayan of Carmen, Surigao del Sur in Regular Session assembled, that:

SECTION 1. Short Title- This Ordinance shall be known as the PUBLIC DECENCY AND ANTI- HALF NAKED/ TOPLESS ACT ORDINANCE OF 2026.

SECTION 2. Objectives-

- a. To promote Public Decency and Social Norms
- b. To enforce a decent attire Dress Code
- c. To Uphold Community Moral Standards
- d. To Strengthen Public Order and Safety
- e. To Standardize Public Hygiene and Grooming

SECTION 3. Definition of Terms- For purposes of this Ordinance, the following terms shall be defined as follows:



- a. PUBLIC PLACES- shall refer to any place open to the public or accessible to the general public including but not limited to streets, roads, sidewalks, plazas, parks, markets, schools, church, government buildings, public transportation terminals and places of entertainment or recreation.
- b. HALF-NAKED/ TOPLESS- shall refer to the state of a person, whether male or female who is not wearing any upper body clothing that covers the chest, torso or back in a decent and appropriate manner as determined by prevailing social norms and standards.

SECTION 4. Prohibition- It shall be unlawful for any person to be half- naked or topless in any public place within the jurisdiction of the Municipality of Carmen, Surigao del Sur.

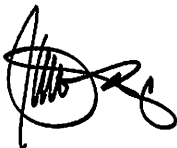
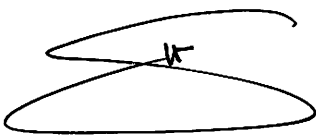
SECTION 5. Exceptions- The prohibitions in Section 3 shall not apply to the following:

- a. Persons engaged in legitimate cultural, religious or traditional activities or ceremonies where being half- naked or topless is an integral part of the practice, provided that prior notice and approval have been secured from the Office of the Municipal Mayor or any designated authority.
- b. Persons engaged in legitimate sports activities or physical exercises in designated areas like gym, sports complex, designated jogging paths where such attire is necessary and appropriate.
- c. Persons with medical conditions that require specific attire or exposure of the body as certified by a licensed physician.
- d. Children age of five (5) years old and below provided that they are under the supervision of a parent or guardian.

SECTION 6. Penalties- Any person found violating the provisions of this Ordinance shall be subject to the following:

FIRST OFFENSE	-	a stern warning
SECOND OFFENSE	-	a fine of Three Hundred Pesos (Php300.00) to Five Hundred Pesos (Php500.00) and/or a Community Service for not less than sixteen (16) hours at the discretion of the barangay concerned
THIRD and SUCCEEDING OFFENSES	-	a fine of Five Hundred Pesos (Php500.00) to One Thousand Pesos (Php1,000.00) and/or a Community Service for not less seventy- two (72) hours at the discretion of the barangay concerned

SECTION 7. Enforcement- The Philippine National Police (PNP) station in the municipality, the Barangay Peace Keeping Team, Barangay Officials and other duly authorized law enforcement representatives of the Municipality shall be responsible for the enforcement of this Ordinance.



SECTION 8. Information Dissemination- the Barangay Council shall conduct public dissemination and/or Information Education Campaign of this Ordinance during their Barangay Assembly.

SECTION 9. Separability Clause- If any provision of this Ordinance is declared unconstitutional or invalid by a competent court of law, the other provisions not affected thereby shall remain in full force and effect.

SECTION 10. Repealing Clause- All Ordinances, Resolutions, Rules and Regulations inconsistent with this Ordinance are hereby repealed or modified accordingly.

SECTION 11. Effectivity Clause- This Ordinance shall take effect twenty- one (21) days after its posting in at least three (3) conspicuous places in the municipality.

ENACTED this 26th day of May, 2026 at Carmen, Surigao del Sur.

I HEREBY ATTEST to the correctness of the foregoing Ordinance.


MA. JULINA T. BORDA-JUTILO, LLB., J.D.
Secretary to the Sangguniang Bayan

CERTIFIED CORRECT:


CARLOS S. ESTRADA
SB Member/
Temporary Presiding Officer

APPROVED:


NESTOR S. VALEDO
Municipal Mayor
06/01/2024